

## EX 2183/2023

DHR called out absent. No representation.

Call at 2-45 pm.

Case again called out at 3-10 pm.

DHR called out absent. No representation.

The DHR filed this execution petition claiming the recovery of Rs.70,54,531/-. The JDR deposited a sum of Rs.69,39,488/- claiming that they are liable to pay only that amount in view of the about and accordingly, claim that they have fully satisfied the award.

In this case the DHR received the aforesaid deposited amount as on 11.03.2024 and on that day the court posted for Memo of Calculation by the DHR.

Thereafter the case is posted for Memo of Calculation on 27.04.2024, 27.06.2024, 02.09.2024, 22.10.2024 and this 07.12.2024 but failed to file any Memo of Calculation. Inspite of granting 5 hearing dates the DHR failed to appear before the court to file any Memo of Calculation.

Hence, the claim of the JDR that they have paid the entire award amount claimed in affidavit filed on 02.09.2024 to be accepted. Continuous non-appearance of DHR as well as non representation of DHR whenever the case is called out shows that the DHR is not willing to file any Memo of Calculation. Hence, the following:

**ORDER.**

The Execution petition is hereby closed.

**II Addl. C.C.&SJ, and Spl. Judge,  
City Civil Court , Bengaluru.**